

Court No. - 4

Case :- WRIT - C No. - 9808 of 2018

Petitioner :- Ved Prakash And 4 Others

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Bala Krishna Narayana,J.

Hon'ble Irshad Ali,J.

Heard Sri Satyam Narayan, learned counsel for the petitioners, learned Standing Counsel for the State-respondent no. 1 and Sri Ajay Kumar, learned counsel for the respondent no. 2.

This writ petition has been filed by the petitioners with a prayer to issue, a writ, order or direction in the nature of certiorari to quash the bill/ notice dated 04.03.2018. A further prayer has been made by the petitioners that a writ of mandamus be issued to the respondent no.2 directing him not to disconnect the electricity connection of the petitioners.

It is submitted by learned counsel for the petitioners that they had obtained an electricity connection for running their power loom. The grievance of the petitioners is that although the petitioners are required to pay electricity dues of their power looms as per the Government Order No.1969/24P-3-2006 dated 24.06.2006 (Annexure No.2 to the writ petition) and they had paid their electricity bills up to the month of February according to the provisions of Government Order No. 387/P.C.L/C.U-3-2006 dated 20.06.2006 (Annexure No.3 to the writ petition) but the respondent no. 2 had issued a bill/ notice dated 04.03.2018 demanding Rs. 21,35,311/- from petitioner no. 1, Rs. 14,81,308/- from petitioner no. 2, Rs. 19,45,398/- from petitioner no. 3, Rs. 35,54,467/- from petitioner no. 4 and Rs. 8,23,702/- from petitioner no. 5 as electricity dues and threatened the petitioners to disconnect their electricity connection in case they failed to pay their bills which is illegal, arbitrary and in violation of Article 14 of the Constitution of India.

Per contra, learned counsel appearing for the respondent no.2 has disputed this very fact that the petitioners were granted connection for running power loom. However, he has invited our attention to Section 6.5 of the Electricity Supply Code, 2005, which provides the forum for settling the dispute arising out of incorrect bills. He further submitted that since the petitioners have got statutory alternative remedy for settling

their grievances, this writ petition is liable to be dismissed on the ground of alternative remedy.

After having heard learned counsel for the parties and perused the averments made in the writ petition and the documents appended thereto as well as Section 6.5 of the Electricity Supply Code, 2005, we find that there is force in the submissions made by the learned counsel for the respondent no.2.

Section 6.5 of the Electricity Supply Code, 2005 is being reproduced hereinunder:-

"6.5 Disputed Bills and Arrears

(a) If there is an error of a non-pecuniary nature (incorrect name, address etc.) in the bill the complaint shall be registered with the concerned competent authority. Corrections, if any required, shall be made in the next bill. The consumer shall be required to make the payment before due date.

(b) If a consumer disputes the accuracy of any bill, he may either make the payment under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed.

(i) If the Complaint is found to be correct by the competent authority, a revised bill shall be issued within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised due date of payment. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately and the consumer shall be liable to pay the late payment surcharge.

(c) If a consumer has cleared his dues as specified in the bill, and still some part of it is shown as an arrear in the next bill, the consumer may lodge a complaint with the Licensee. However, if this arrear is again reflected in the next billing cycle also, the consumer shall be entitled for compensation as prescribed in Annexure 7.1.

(d) In case licensee raises a bill for supply of energy to permanently disconnected connection e.g. six months after temporary disconnection, the Consumer may intimate the MD of the licensee under proper receipt and if no action is still taken within next 15 days, shall be entitled for compensation as prescribed in Annexure 7.1 by licensee. The licensee shall submit a quarterly statement to the Commission giving zone wise details of such bills along

with compensation given on this account during the quarter."

We have been informed by the learned counsel for the respondent no. 2 that the competent authority for examining the grievance of the petitioners is the respondent no. 2.

In view of the above, without expressing any opinion on the merits of the case, we dispose of this writ petition with the liberty to the petitioners to make a representation against the disputed bills before the respondent no. 2 along with certified copy of this order before the Executive Engineer, Electricity Distribution Division- Baghpat, respondent no. 2 and in case any such representation is moved by the petitioners before the respondent no. 2 within two weeks along with certified copy of this order, he shall decide the same strictly in accordance with law by a speaking and reasoned order within a further period of four weeks from the date of receipt of such representation.

In case the petitioners claim that they have made up-to-date payment of their electricity dues, if that be so, neither any recovery shall be made from them nor their power will be disconnected.

Order Date :- 16.3.2018

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